

Tentative Rulings for August 25, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2507137	MONROY vs FREDERICK EKO, M.D.	MOTION FOR SANCTIONS

Tentative Ruling:

Moving party: Defendant Frederick Edo M.D. (erroneously sued as Dr. Fredrick Eko)(“Defendant”)

Responding party: Plaintiff Mrya Monroy, in pro per (“Plaintiff”)

Plaintiff filed a Complaint for general negligence/personal injury/emotional injury on September 30, 2025. A first amended complaint was filed on February 2, 2026. The operative pleading is the second amended complaint, filed on June 9, 2026. That pleading alleges (1) medical negligence; and (2) lack of informed consent.

Defendant served Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One, to plaintiff via U.S. Mail and electronic mail. Plaintiff's response to defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One were due on December 23, 2025.

On January 12, 2026, Defendant filed and served three Motions to Compel Plaintiff's initial responses to defendant's Form Interrogatories, Special Interrogatories, and Request for Production, Set One, each with a Request for Monetary Sanctions. Thereafter, on January 29, 2026, Plaintiff served minimal and deficient responses to defendant's written discovery. On March 5, 2026, Plaintiff served purported “supplemental” response, which remained insufficient and failed to cure any of the deficiencies discussed in the meet and confer process.

On April 15, 2026, this Court granted Defendant's Motions to Compel plaintiff's responses to defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. The Court ordered Plaintiff provide verified responses without objection within 30 days and to pay sanctions in the amount of \$1,327.50 per Motion, a total amount of \$3,982.5.

On April 16, 2026 defendant served a Notice of Ruling regarding the Court's order on plaintiff. Plaintiff was aware of the Court's order, as thereafter, Plaintiff attempted to file for relief from the sanctions issued against her. Plaintiff failed to abide by the Court's order in its entirety. As of this date, Plaintiff has not served verified responses nor has she paid sanctions.

Defendant now moves for an order imposing terminating sanctions against Plaintiff. This motion is made pursuant to CCP §§ 2023.010, 2023.030, 2030.290 and 2031.300 on the grounds that Plaintiff has repeatedly failed to participate in discovery, and has failed to comply with the Court's order requiring plaintiff to provide responses to Form Interrogatories Set No. One, Special Interrogatories Set No. One, and Request for Production of Documents Set No. One propounded by defendant. To date, plaintiff has

not provided any verified, code-compliant discovery responses and is now in violation of the Court's order on April 15, 2026, which required responses within thirty (30) days, thereby abusing the discovery process to such an extent that terminating sanctions are appropriate.

With this motion, Defendant is not seeking duplicate sanctions, rather, Defendant is seeking that the Court confirm that the previously awarded sanctions remain due and owing and preserve Defendant's ability to pursue all enforcement remedies regarding those sanctions while considering the requested terminating relief.

In Opposition, Plaintiff contends that she has not acted in defiance of the subject discovery orders. Rather, a temporary tracking delay occurred due to an unexpected residential relocation on June 1, 2026, which disrupted the tracking of case proceedings (p. 6). Plaintiff has acted with utmost diligence to get the case back on track, has successfully filed an Amended Complaint, has provided available discovery responses to the defense, and is actively coordinating a specialized 3T Pelvic MR Neurography medical scan (pp. 1, 3). She contends that substantial justice requires that this case be decided on its merits. Plaintiff asserts that she is actively engaged in the litigation process and has completed outstanding discovery responses to the best of her ability (p. 3). Any gap in communication was directly caused by the logistics of moving residences on June 1, 2026, not an intentional disregard for the Court or defense counsel (p. 6). Because Plaintiff is actively conferring with the defense and supplementing responses as her medical diagnostics proceed, a terminating sanction is wholly disproportionate and legally unjustified (pp. 3, 5).

In Reply, Defendant contends Plaintiff has not completed her outstanding discovery obligations and her June 1 move does not excuse her.

Analysis

I. Standard

When a party fails to obey a court order compelling discovery responses, the court may impose monetary, issue, evidentiary, and/or terminating sanctions. (C.C.P. § 2023.030(a)–(d).) The court has discretion to issue a terminating sanction in response to a misuse of the discovery process. (C.C.P. §§ 2023.030(d), 2030.300(e); 2031.310(i).) A terminating sanction will be affirmed on appeal absent an abuse of discretion. (*Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 928–29).

Terminating sanctions can take the form of (1) striking out the party's pleading or part thereof; (2) staying further proceedings by that party until he or she obeys the court order; (3) dismissing that party's action, or any part thereof; or (4) rendering default judgment against that party. (C.C.P. § 2023.030(d).) There is no requirement to meet and confer before filing a motion for sanctions under C.C.P. §§ 2030.300(e) and/or 2031.310(i).

Importantly, however, discovery sanctions are issued to remedy discovery abuse, not to punish the offending party. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.)

The sanctions should be proportionate to the offending party's misconduct. (*Ibid.*) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanctions." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280; see also *Dopes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 [terminating sanctions are appropriate where there is a willful violation "preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules"]; *Biles v. Exxon Mobile Corp.* (2004) 124 Cal.App.4th 1315, 1327 [terminating sanctions are not ordered unless there is a violation of a court order and a willful failure to comply]. Typically, less severe sanctions (*i.e.*, monetary sanctions) are awarded first, before escalating to evidentiary, issue, or terminating sanctions; however, it is not improper for a court to preclude a party from producing at trial the evidence they repeatedly refused to produce during discovery. (*Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, 389; see also *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701-02 [where lesser sanction fails to curb misuse, a greater sanction is warranted; continuing misuse of the discovery process warrants incrementally harsher sanctions that will curb the abuse].)

The Court ordered plaintiff on April 15, 2026 to provide verified responses without objection within 30 days. Plaintiff's deadline therefore expired in May 2026. Plaintiff states that her unexpected residential move occurred on June 1, 2026—after she was already in violation of the Court's order. The move cannot explain plaintiff's failure to comply with a deadline that had already passed.

Nor was the Court order plaintiff's first notice of her discovery obligations. Defendant served the discovery on November 21, 2025, more than six months before plaintiff's move. After plaintiff failed to timely provide code-compliant responses, defendant sent multiple detailed meet-and-confer letters, made telephone calls identifying the deficiencies, and provided plaintiff with ample opportunities to cure. Plaintiff therefore had repeated notice and opportunities to provide compliant responses. Her recent move does not excuse the months of noncompliance that preceded it or her continuing failure to cure the deficiencies. Furthermore, after plaintiff failed to timely provide code-compliant responses, despite defendant's extensive efforts to obtain them, defendant filed motions to compel as to the outstanding and insufficient discovery responses. The Court granted those motions and imposed monetary sanctions. Plaintiff's Opposition does not deny receiving notice of the ruling, and her subsequent attempt to obtain relief from the sanctions confirms her awareness of the order. Thus, the relevant history substantially predates the June 2026 move.

Defendant is not seeking terminating sanctions for a technical defect. The Motion is based on plaintiff's continuing failure to obey a direct discovery order after months of prior efforts to obtain compliance.

This Court finds Plaintiff's violation to be willful, preceded by a history of abuse, and the evidence shows that less severe sanctions did not produce compliance with the discovery rules. **Accordingly, this Court imposes a terminating sanction and orders the matter dismissed (CCP §2023.030(d)(3)).**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406508	FLORES vs ELDORADO NATIONAL (CALIFORNIA), INC.	MOTION TO COMPEL

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Tentative Ruling:

The parties have been working on resolving these discovery issues for months. Most recently, Rev Group produced a substantial number of documents (thousands of pages) on August 17, 2026. Attorney Gavriiliuc “anticipates that the document production from Rev Group Inc. will be completed within 4-6 weeks from August 25, 2026.” For this reason, the parties are asking for “one final two months continuance” to allow for time for Rev Group to complete its document production. Attorney Gavriiliuc is hopeful this additional continuance will allow the parties to “resolve all discovery disputes...and to be able to request that the motions be taken off calendar (or at a minimum, substantially narrow the issues.)”

Grant one *final* continuance. Motion continued until 10/28/2026 at 8:30 a.m. in Dept. 6.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502034	BUSTAMANTE vs PHOENIX ASSURANCE LLC	MOTION TO BE RELIEVED AS COUNSEL FOR PHOENIX ASSURANCE, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Hardy Murphy (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134).

Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted.

Counsel is relieved as counsel of record for client effective upon the filing of the proof of service of the signed order upon the client and all parties that have appeared in the action. Order submitted to the court has been signed and filed by the court clerk.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502492	WHITSON vs MADRID- ANZACK	MOTION FOR RELIEF FROM DISMISSAL

Tentative Ruling:

A motion to set aside a dismissal is generally governed by California Code of Civil Procedure §473(b). A motion to set aside a dismissal under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

Under CCP §473(b), the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment (or dismissal), is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

CCP §473(b) grants the trial court discretion to vacate a dismissal on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. *Hopkins & Carley v. Gens* (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; *Luz v. Lopes* (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

Mistake

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person

knows the facts as they really are, but has a mistaken belief as to the legal consequences of those facts. *People v. Kelly*, 35 Cal.App.2d 571, 574, 96 P.2d 372.

Under CCP §473(b), relief from default may be granted if the moving party demonstrates a material mistake of fact or law, regardless of whether the mistake was made by a party or by his or her attorney. However, because a lawyer has a duty to look up the law if he or she does not know it, an attorney's mistake of law will be grounds for relief only if it was reasonable. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38; *McCormick v. Board of Supervisors*, 198 CA3d 352, 360, 243 CR 627, 621. The controlling factors in determining whether an attorney's mistake was reasonable are: (1) the reasonableness of the misconception; and (2) the justifiability of the failure to determine the correct law. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38.

Inadvertence

Under CCP §473(b), relief from dismissal may be granted if the moving party demonstrates "inadvertence." Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. *Greene v. Montana Brewing Co.*, 32 Mont. 102, 79 P. 693, 694 (internal citations omitted). Inadvertence in the abstract is no plea on which to vacate a default or dismissal. *Shearman v. Jorgensen* (1895) 106 Cal. 483, 485, 39 P. 863.

Surprise

Under CCP §473(b), relief from dismissal may also be granted if the moving party demonstrates "surprise." Surprise refers to "some condition or situation in which a party...is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." *Credit Managers Ass'n of So. Calif. v. National Independent Business Alliance* (1984) 162 CA3d 1166, 1173, 209 CR 119, 123; *Hearn v. Howard* (2009) 177 CA4th 1193, 1206, 99 CR3d 642, 654.

Excusable Neglect

Discretionary relief from default may be granted where the moving party can show "excusable neglect," i.e., where the moving party can demonstrate that the default (or dismissal) could not have been avoided through the exercise of ordinary care. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398; *Jackson v. Bank of America* (1983) 141 CA3d 55, 58, 190 CR 78, 80. The issue boils down to whether the moving party has shown a reasonable excuse for the default. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398, 410 (rejecting "categorical statements about what can be found to constitute excusable neglect").

Based on the reading of the declaration of counsel, James Long, the Court finds that Counsel acted with excusable neglect and grants the motion to set aside the dismissal of 4/6/2026.

The matter is set for a **Case Management Conference** on **10/26/2026** at 8:30 a.m. in Dept. 6. The Court also sets the matter for an **OSC** as to why sanctions of up to \$1,500 or a dismissal should not be imposed for Plaintiff's failure to timely file proof of service on all defendants (CRC 3.110.(b)&(f)) on the same date, **10/26/2026** at 8:30 a.m.